D H A R

Volume III — Ecosystem, Trust & Adoption

THE HALLMARK OF DHAR

“A hallmark certifies the metal, not the sentiment behind it.”

Document	The Hallmark of Dhar — Legal, Licensing, IP & Export Posture
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Depends on	Spec1 §18 (foreign), Spec0 §5 (defence use case)
Audience	Legal counsel, leadership

1. Mandate

Record Dhar's legal posture accurately, at the level this Canon can responsibly state it: general, factual, and explicit about where a real lawyer is required rather than a document. Nothing here is legal advice; it is the map a lawyer would need to be handed before giving any.

2. License Choice: Why MIT

Both existing Dhar repositories already carry an MIT license, copyright Abdullahi Baba Garba. This Canon ratifies that choice rather than revisiting it, for reasons distinct from Fueling Dhar's business framing: MIT is short, widely understood without specialist interpretation, compatible with nearly every other license an adopter might need to combine Dhar with, and imposes no reciprocal obligation on downstream users — the same property that makes it business-friendly (Fueling Dhar §2) also makes it legally simple to clear through an institutional legal review, which for a government or defence adopter (Spec0 §5) is frequently the actual bottleneck, not the license's substance.

3. Trademark

“Dhar” and “Kun” function as source identifiers for a specific toolchain and package manager, distinct from the open license covering their code — the same separation Rust (the language, unregistered common-law mark for years before formal registration) and Python (a registered PSF trademark, licensed for community use under a written policy) both maintain. Registering both names in at least the jurisdictions of primary use, with a short, public trademark policy stating that the license to the code and the license to use the names are not the same grant, is recorded here as a required future action, not yet completed by this Canon itself.

4. Patent Posture

A defensive, not offensive, posture: Dhar does not initiate patent claims against implementations or users of the language, and should adopt a written non-aggression commitment once an entity exists to hold one — the same shape as the patent grants built into the Apache 2.0 license and the separate non-aggression pledges some foundations layer on top of an MIT-licensed codebase specifically because MIT itself contains no patent grant language. This is identified here as a gap MIT's brevity leaves open, worth closing with a short, separate written pledge rather than by switching licenses.

5. Export Control Awareness

This section states what regimes exist and why they are relevant to check against, not a conclusion about whether they apply — that determination requires counsel reviewing the actual, finished software, not a language specification.

- The US Export Administration Regulations (EAR, administered by the Department of Commerce's Bureau of Industry and Security) have historically applied specific treatment to encryption software — std.crypto (Stage-delta §2) is the module this Canon flags as needing that review first, once it exists. Publicly available open-source encryption source code has generally received favorable treatment under EAR (historically via License Exception TSU and a notification requirement), a legacy of the 1990s policy debates over exporting cryptography — relevant background, not a determination that it automatically applies to Dhar's eventual std.crypto.
- The International Traffic in Arms Regulations (ITAR, administered by the Department of State) cover defense articles and services specifically; a general-purpose compiler and standard library are not defense articles by nature, but a specific deployment or customization for a named defence end use, per Spec0 §5, is exactly the kind of context where this needs a real legal read rather than an assumption in either direction.
- Dual-use awareness is a standing posture, not a one-time check: it should be revisited whenever std.crypto or a defence-specific integration (Tempering Dhar) reaches a releasable state, not decided once here and forgotten.

6. Relationship to Other Volumes

This document assumes	Ratified in
The license whose business rationale it complements	Fueling Dhar §2
The defence use case that motivates §5	Spec0 §5, Tempering Dhar
The crypto module §5 flags for review	Stage-delta §2

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